

25CV02730 Laurel Creek LP v. Travelers Property Casualty Co. of Am.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-07-22

Motion: Motion for Leave to file 2AC.

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Tentative Ruling: Laurel Creek LP v. Travelers Property Casualty Co. of Am.

Case Number

25CV02730

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 07/22/2026 - 10:00

Nature of Proceedings

Motion for Leave to file 2AC.

Tentative Ruling

For Plaintiff: Robert J. Stoll, Jr., Robert J. Stoll, III

For Defendant Travelers: Aaron C. Agness, Shadie Maghareh

Issue

Motion for Leave to file 2AC.

RULING

The Motion is GRANTED. The Complaint was filed 5/1/25; Plaintiff alleges it suffered a series of water intrusions at its premises at 1150 Laurel Lane, San Luis Obispo, California, during a renovation project and incurred extensive damage to its building and the interior. Filed suit [50 page complaint – 2 counts] for breach of the contractual duty to pay a covered insurance claim, and the breach of the implied covenant of good faith and fair dealing.

On 6/11/25 Plaintiff filed a FAC and on 7/11/25 Travelers filed its answer.

On 4/27/26, Plaintiff Laurel Creek, LP, filed this motion for leave to file a second amended complaint. Reported at length why it could not be filed earlier.

On 7/10/26, Defendant Travelers filed its statement of non-opposition to the motion.

The motion should be granted.

Plaintiff shall file and serve the second amended complaint, in a form substantially the same as attached to the motion, on or before 7/23/26.

This is not complicated litigation for the very experienced lawyers in this case. The Court has spent considerable time on the issues already. The Court assumes the answer to the FAC will be adequate for a response to the SAC and no new responsive pleading needs to be filed by Travelers. Please confirm.

ALERT: The Court has just signed the very recent stipulation to continue the trial date; the Court will not do so again.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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